

CHAPTER 36.

An Act to provide for the amendment, in relation to certain classes of persons, of the enactments relating to unemployment insurance with a view to the elimination of anomalies in the operation of those enactments, and to provide for facilitating the removal of workers and their dependants from one place to another. [31st July 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) For the purpose of removing anomalies which have arisen in the operation of the Unemployment Insurance Acts in connection with the classes of persons hereinafter in this section mentioned, it shall be the duty of the Minister, after consultation with the Advisory Committee constituted for the purposes of this section, to make as soon as may be after the passing of this Act, regulations which shall, in relation to the classes of persons to whom this section applies, impose such additional conditions and terms with respect to the receipt of benefit and such restrictions on the amount and period of benefit, and make such modifications in the provisions of the Unemployment Insurance Acts relating to the determination of claims for benefit, as may appear necessary for the purposes aforesaid.

Provisions with respect to benefit in the case of special classes of persons.

(2) The classes of persons to whom this section applies are the following :—

- (a) persons who habitually work for less than a full week, and by the practice of the trade in which they are employed nevertheless receive earnings or similar payments of an amount greater than the normal earnings for a full week of persons following the same occupation in the same district;

- (b) persons whose normal employment is employment for portions of the year only in occupations which are of a seasonal nature;
- (c) persons whose normal employment is employment in an occupation in which their services are not normally required for more than two days in the week or who owing to personal circumstances are not normally employed for more than two days in the week;
- (d) married women who, since marriage or in any prescribed period subsequent to marriage, have had less than the prescribed number of contributions paid in respect of them :

Provided that this class shall not include married women whose husbands are incapacitated from work or are unemployed and not in receipt of benefit.

(3) The regulations made under this section in relation to persons of the class specified in paragraph (a) of subsection (2) of this section shall not operate so as to reduce the amount of benefit otherwise payable to any person in respect of any week by more than the amount by which the aggregate of the earnings or similar payments received by him in that week and of the benefit aforesaid exceeds the normal earnings for a full week of persons following the same occupation in the same district.

(4) Regulations made in pursuance of this section may apply either generally to all the persons specified in subsection (2) of this section or to any class of those persons or to any portion of such a class, or with respect to them or any of them, in any specified area.

(5) In the case of a person who, immediately before the date on which any regulations made in pursuance of this section come into operation, satisfied the requirements for the receipt of benefit under the law in force immediately before the said date, benefit may, during such period as may be necessary for the examination of the qualifications of that person for the receipt of benefit under the said regulations, but not in any case after the expiration of three months from the said date, be paid to him as if the regulations had not been made.

(6) Before making any regulations under this section, the Minister shall submit a draft thereof to the Advisory Committee and that Committee shall forthwith proceed to take the draft into consideration and shall as soon as may be make a report thereon to the Minister.

The Minister shall cause every report received by him from the Advisory Committee to be laid forthwith before each House of Parliament.

2.—(1) For the purposes of section one of this Act, there shall within six weeks after the passing of this Act be established an Advisory Committee which shall be constituted in the manner provided by this section. Constitution
of Advisory
Committee.

(2) The Advisory Committee shall consist of a chairman and nine other members (of whom at least one shall be a woman) who shall be appointed by the Minister, and shall hold office for such period from the date of their appointment as the Minister may think proper.

(3) Of the said nine members three shall be appointed by the Minister after consultation with the General Council of the Trades Union Congress, three after consultation with the National Confederation of Employers' Organisations, and one after consultation with the Treasury.

(4) If any member of the Advisory Committee becomes in the opinion of the Minister unfit for any reason to continue to be a member of the Committee, the Minister may terminate his appointment.

(5) Provision may be made by regulations with respect to proceedings and meetings of the Advisory Committee (including the method of voting and quorum), and all matters incidental thereto.

(6) There may be paid to members of the Advisory Committee and to any persons to whom the Committee may, with the approval of the Minister, refer questions for consideration and advice, such travelling and other allowances, including compensation for loss of remunerative time, as the Minister, with the sanction of the Treasury, may determine, and any such payments shall be treated as expenses incurred by the Minister in carrying the Unemployment Insurance Acts into operation.

Schemes for facilitating removal of workers from one place to another.

3. With a view to promoting employment, the Minister may, on such terms and subject to such conditions as may be determined by schemes made by him, with the approval of the Treasury, make provision by way of grant or loan or otherwise for the purpose of facilitating the removal of workers and their dependants from one place to another.

Expenses of Minister of Labour.

4. The expenses incurred by the Minister under this Act shall be defrayed out of moneys provided by Parliament.

Interpretation, application and short title.

5.—(1) In this Act, unless the context otherwise requires—

The expression “benefit” means unemployment benefit:

The expression “Minister” means the Minister of Labour:

The expression “the Unemployment Insurance Acts” means the Unemployment Insurance Acts, 1920 to 1931:

The expression “prescribed” means prescribed by regulations:

The expression “regulations” means regulations made under section thirty-five of the Unemployment Insurance Act, 1920.

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(2) This Act shall not apply to Northern Ireland.

(3) Sections one and two of this Act shall continue in force until the thirtieth day of June, nineteen hundred and thirty-three, and no longer.

(4) This Act may be cited as the Unemployment Insurance (No. 3) Act, 1931, and shall so far as it relates to unemployment insurance be construed as one with the Unemployment Insurance Acts, and be included among the Acts which may be cited together as the Unemployment Insurance Acts, 1920 to 1931, and any reference in this Act to the Unemployment Insurance Acts, or to any of those Acts, or to any provision in any of those Acts shall, unless the context otherwise requires, be construed as a reference to those Acts, that Act or that provision in that Act, as the case may be, as amended by this Act.
